

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 11, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Cook, and pursuant to support received by Mr. Shanor and Mr. Case, Agenda Item #12 was removed from the Consent Agenda. Upon request by Mr. Case, and pursuant to support received by Mr. Cook and Mr. Shanor, Agenda Item #11 was removed from the Consent Agenda. Mr. Case moved to approve remaining Consent Agenda items, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 27, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C) (postponed from 11/27/2017). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Mr. Roybal moved to postpone to December 20, 2017 at the request of the developer, seconded by Mr. Case. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Amending Section 1.12.010, Findings of fact, and amending Section 1.12.020, Filing of plats and maps, of Chapter 1.12, Datum Plane, of Title 1, General Provisions, of the code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4212)

ORDINANCE – 2nd READING – Amending various sections of Title 10, Vehicles and Traffic, of the code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Mr. Roybal moved to amend Section 10.60.010 by removing the reference to 100 feet and replacing it with 150 feet, seconded by Mr. Cook. Request was made for City Attorney review of enforcement concerns that may arise involving contested violations and the City’s defense relative to the referencing of a specific footage distance. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 1.4.4.f., Industrial Use definition, of the UDC to clarify what land uses are subject to the Moderate Industrial and the Industrial use categories – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$58,535.43 pursuant to Wyo. Stat. §16-4-502. Reporting for Finance Committee, Mr. Luna moved to adopt, seconded by Mr. White. It was clarified that a debtor listed on the Board of Public Utilities’ uncollectible list involved unpaid charges incurred by a previous owner of the Hitching Post, not the current owner. Ron Downey, City Treasurer, confirmed the former owner, Cheyenne Mantiff, filed bankruptcy many years ago and the debt was uncollectible. Motion carried. Voting “yes” – all members of the governing body. (#5895)

RESOLUTION – Authorizing a one-time payment to each member of the bargaining unit of Cheyenne Firefighters Local Union Number 279 in settlement of the grievance filed by the Union against the City concerning health insurance benefits. Mr. Luna moved to adopt, seconded by Mr. Case. Upon inquiry for the record, Sylvia Hackl, City Attorney, provided an explanation of the intent of the resolution, which is the result of negotiations pursuant to the collective bargaining agreement and the grievance process initiated by the Union concerning changes to the City’s health insurance benefits plan. Ms. Hackl reviewed the grievance process involving an arbitrator and the City’s offer to settle to avoid formal arbitration and affiliated costs. Mayor Orr and Ms. Hackl provided information on eligible members who will receive the settlement payment, and noted the City is not acknowledging any non-compliance of current contract provisions. Comment was made on addressing the issue in the next collective bargaining contract. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. (#5896)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Clear Creek Subdivision, 1st Filing, being situated in portions of Sections 10, 11, 14, 15 and 16, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County, Wyoming (located west of I-25 between College Avenue and I-80) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Clear Creek Subdivision, 2nd Filing, being situated in portions of Sections 11 and 12, Township 13 North, Range 67 West of the Sixth Principal Meridian, City of Cheyenne, Wyoming (located southeast of the I-25 and I-80 interchange) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Acknowledging receipt of the Southeast Greenway Trail Connector Plan – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Acknowledging receipt of the Cheyenne Frontier Days Traffic Study and Transportation Plan – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for board training to attend two historic preservation conferences – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Certifying that the Governing Body of the City of Cheyenne has agreed upon the Laramie County Sheriff Detention Center Pump Project, to be submitted to the State Loan and Investment Board for 2015-2016 Countywide Consensus Block Grant Funding – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters to clarify the intent of a portion of Section 23, Working in a Higher Job Rank, contained in the 2017-2018 Collective Labor Agreement – referred to Finance Committee

Professional Services Agreement for Municipal Finance Counsel Services between the City of Cheyenne and Kutak Rock, LLP. Mr. Luna moved to approve, seconded by Mr. White. Upon inquiry on whether the firm could also provide financing options for other projects not just the Municipal Court 6th Penny project, Mayor Orr advised minutes from the recent Finance Committee meeting reflect a substitute agreement would be offered which addresses the topic, and Sylvia Hackl, City Attorney explained the substitute adds the option that the City may request additional financial services for other 6th Penny projects. Mr. Luna moved to amend by substitute agreement dated December 4, 2017, seconded by Mr. Case. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6766)

[CA] Request to change retail liquor license package store room dimensions for the Albany, Inc. d/b/a Albany Restaurant, Bar and Liquormart, 1506 Capitol Avenue, Cheyenne, Wyoming – referred to Finance Committee.

Announcement was made that due to the Christmas holiday and City offices being closed on Monday and Tuesday, December 25 and 26, 2017, regularly scheduled City Council Committee meetings will be held in the Municipal Building, 2101 O’Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Monday, December 18, 2017 at 11:00 a.m. and Public Services Committee will meet Monday, December 18, 2017 at Noon. The December 25, 2017 regularly scheduled City Council meeting will instead be held on Wednesday, December 20, 2017 at 6:00 p.m. in the Municipal Building, City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming.

Under other business:

Mr. Johnson provided information received from a constituent regarding concern with the increase in crimes recently within the City. Captain Nathan Buseck, Police Department, acknowledged there have been some traumatic incidents over the past few weeks and stressed the importance of maintaining good relationships between citizens and police officers. Mayor Orr expressed appreciation to all first responders involved with incidents. General comments were made that the increase does not constitute a trend at this time, and that support for community rehabilitative programs is important.

There being no further business to come before the governing body, Mr. Case moved to meet in executive session pursuant to Wyoming Statute Sections §16-4-405 (a)(vii) and (ix) to consider the potential purchase of real property, and to consider or receive any information classified as confidential by law, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body. Mayor Orr advised the executive session would be held in the Mayor’s Conference Room and would not be open to the public. In addition to governing body members, Mayor Orr stated the City Attorney, City Clerk, Director of Planning and Development and Director of Public Works would also be attending the session. She noted following the executive session further action by the governing body would not be taken, therefore, the regular meeting of the governing body would be officially adjourned following closure of the executive session.

The meeting was officially adjourned at 8:04 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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